

Opinion of the Court

some flexibility to impose collective liability. Given the wide spectrum of relationships between participants and beneficiaries of unlawful schemes—from equally culpable codefendants to more remote, unrelated tipper-tippee arrangements—the Court need not wade into all the circumstances where an equitable profits remedy might be punitive when applied to multiple individuals.

Here, petitioners were married. 754 Fed. Appx. 505; 262 F. Supp. 3d, at 960–961. The Government introduced evidence that Liu formed business entities and solicited investments, which he misappropriated. *Id.*, at 961. It also presented evidence that Wang held herself out as the president, and a member of the management team, of an entity to which Liu directed misappropriated funds. *Id.*, at 964. Petitioners did not introduce evidence to suggest that one spouse was a mere passive recipient of profits. Nor did they suggest that their finances were not commingled, or that one spouse did not enjoy the fruits of the scheme, or that other circumstances would render a joint-and-several disgorgement order unjust. Cf. *SEC v. Hughes Capital Corp.*, 124 F. 3d 449, 456 (CA3 1997) (finding that codefendant spouse was liable for unlawful proceeds where they funded her “lavish lifestyle”). We leave it to the Ninth Circuit on remand to determine whether the facts are such that petitioners can, consistent with equitable principles, be found liable for profits as partners in wrongdoing or whether individual liability is required.

C

Courts may not enter disgorgement awards that exceed the gains “made upon any business or investment, when both the receipts and payments are taken into the account.” *Goodyear*, 9 Wall., at 804; see also Restatement (Third) §51, Comment *h*, at 216 (reciting the general rule that a defendant is entitled to a deduction for all marginal costs incurred in producing the revenues that are subject to disgorgement). Accordingly, courts must deduct legitimate expenses before

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ordering disgorgement under § 78u(d)(5). A rule to the contrary that “make[s] no allowance for the cost and expense of conducting [a] business” would be “inconsistent with the ordinary principles and practice of courts of chancery.” *Tilghman*, 125 U. S., at 145–146; cf. *SEC v. Brown*, 658 F. 3d 858, 861 (CA8 2011) (declining to deduct even legitimate expenses like payments to innocent third-party employees and vendors).

The District Court below declined to deduct expenses on the theory that they were incurred for the purposes of furthering an entirely fraudulent scheme. It is true that when the “entire profit of a business or undertaking” results from the wrongdoing, a defendant may be denied “inequitable deductions” such as for personal services. *Root*, 105 U. S., at 203. But that exception requires ascertaining whether expenses are legitimate or whether they are merely wrongful gains “under another name.” *Goodyear*, 9 Wall., at 803. Doing so will ensure that any disgorgement award falls within the limits of equity practice while preventing defendants from profiting from their own wrong. *Root*, 105 U. S., at 207.

Although it is not necessary to set forth more guidance addressing the various circumstances where a defendant’s expenses might be considered wholly fraudulent, it suffices to note that some expenses from petitioners’ scheme went toward lease payments and cancer-treatment equipment. Such items arguably have value independent of fueling a fraudulent scheme. We leave it to the lower court to examine whether including those expenses in a profits-based remedy is consistent with the equitable principles underlying § 78u(d)(5).

* * *

For the foregoing reasons, we vacate the judgment below and remand the case to the Ninth Circuit for further proceedings consistent with this opinion.

It is so ordered.

THOMAS, J., dissenting

JUSTICE THOMAS, dissenting.

The Court correctly declines to affirm the Ninth Circuit’s decision upholding the District Court’s disgorgement order, but I disagree with the Court’s decision to vacate and remand for the lower courts to “limi[t]” the disgorgement award. *Ante*, at 74. Disgorgement can never be awarded under 15 U.S.C. § 78u(d)(5). That statute authorizes the Securities and Exchange Commission (SEC) to seek only “equitable relief that may be appropriate or necessary for the benefit of investors,” and disgorgement is not a traditional equitable remedy. Thus, I would reverse the judgment of the Court of Appeals.

I

The Securities Exchange Act of 1934, as amended in 2005, allows the SEC to request “equitable relief” in federal district court against those who violate federal securities laws. § 78u(d)(5). According to our usual interpretive convention, “equitable relief” refers to forms of equitable relief available in the English Court of Chancery at the time of the founding. Because disgorgement is a creation of the 20th century, it is not properly characterized as “equitable relief,” and, hence, the District Court was not authorized to award it under § 78u(d)(5).

A

“This Court has never treated general statutory grants of equitable authority as giving federal courts a freewheeling power to fashion new forms of equitable remedies.” *Trump v. Hawaii*, 585 U. S. 667, 714 (2018) (THOMAS, J., concurring). “Rather, it has read such statutes as constrained by ‘the body of law which had been transplanted to this country from the English Court of Chancery’ in 1789.” *Ibid.* (quoting *Guaranty Trust Co. v. York*, 326 U. S. 99, 105 (1945)). As Justice Story put it, “the settled doctrine of this court is, that the remedies in equity are to be administered . . . according to the practice of courts of equity in [England], as

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contradistinguished from that of courts of law; subject, of course, to the provisions of the acts of congress.” *Boyle v. Zacharie & Turner*, 6 Pet. 648, 658 (1832).

We have interpreted other statutes according to this “settled doctrine.” For example, we have read the term “equitable relief” in the Employee Retirement Income Security Act of 1974 to refer to “those categories of relief that were typically available in equity.” *Mertens v. Hewitt Associates*, 508 U. S. 248, 256 (1993) (emphasis deleted). We have done the same for the Judiciary Act of 1789, see, e. g., *Grupo Mexicano de Desarrollo, S. A. v. Alliance Bond Fund, Inc.*, 527 U. S. 308, 318–319 (1999), and for provisions in the Bankruptcy Code, see *Taggart v. Lorenzen*, 587 U. S. 554, 559–560 (2019). There is nothing about § 78u(d)(5) that counsels departing from this approach.

B

Disgorgement is not a traditional form of equitable relief. Rather, cases, legal dictionaries, and treatises establish that it is a 20th-century invention.

As an initial matter, it is not even clear what “disgorgement” means. The majority frankly acknowledges its ““protean character.”” *Ante*, at 80 (quoting *Petrella v. Metro-Goldwyn-Mayer, Inc.*, 572 U. S. 663, 688, n. 1 (2014)). The difficulty of defining this supposedly traditional remedy is the first sign that it is not a historically recognized equitable remedy. In contrast, an accounting for profits, or accounting—a distinct form of relief that the majority groups with disgorgement—has a well-accepted definition: It compels a defendant to account for, and repay to a plaintiff, those profits that belong to the plaintiff in equity. Bray, *Fiduciary Remedies*, in *The Oxford Handbook of Fiduciary Law* 449 (E. Criddle, P. Miller, & R. Sitkoff eds. 2019). The definition of disgorgement, after today’s decision, is a remedy that compels each defendant to pay his profits (and sometimes, though

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it is not clear when, all of his codefendants’ profits) to a third-party Government agency (which sometimes, though it is not clear when, passes the money on to victims). This remedy has no basis in historical practice.

No published case appears to have used the term “disgorgement” to refer to equitable relief until the 20th century. Even then, the earliest cases use the word in a “non-technical” sense, Brief for Law Professors as *Amici Curiae* 22, to describe the action a defendant must take when a party is awarded a traditional equitable remedy such as an accounting for profits or an equitable lien.¹ For example, in *Byrd v. Mullinix*, 159 Ark. 310, 251 S. W. 871 (1923), the Supreme Court of Arkansas affirmed the imposition of an equitable lien to prevent a debtor from “put[ting] the money in property which was itself beyond the reach of creditors, and to compel its disgorgement,” *id.*, at 316–317, 251 S. W., at 872. Likewise, in *Armstrong v. Richards*, 128 Fla. 561, 175 So. 340 (1937), the Supreme Court of Florida referred to “the right of the taxpayer to require an accounting from and disgorgement by public officers and those in collusion with them,” *id.*, at 564, 175 So., at 341. In these cases, the term “disgorgement” colloquially described what a defendant was ordered to do, not the remedy itself.

By the 1960s, published opinions began to use “disgorgement” to refer to a remedy in the administrative context. In *NLRB v. Local 176*, 276 F. 2d 583 (CA1 1960), the agency had “applied its . . . remedy of disgorgement of dues, requiring the union to refund to every member who had obtained employment on the Company project the dues which he had paid,” *id.*, at 586 (footnote omitted). The court declined to enforce this part of the agency’s order, but not because disgorgement was an impermissible form of relief. Instead, it

¹ An equitable lien is imposed on a defendant’s property “as security for a claim on the ground that otherwise the former would be unjustly enriched.” Restatement of Restitution § 161, p. 650 (1936).

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found that, in the circumstances of the case, disgorgement “seem[ed] . . . to be an ex post facto penalty.” *Ibid.*; see also *NLRB v. Local 111*, 278 F. 2d 823, 825 (CA1 1960) (enforcing a disgorgement order from the agency).

By the 1970s, courts started using the term “disgorgement” to describe a judicial remedy in its own right. When the SEC initially sought this kind of relief under the Securities Exchange Act in *SEC v. Texas Gulf Sulphur Co.*, 312 F. Supp. 77 (SDNY 1970), the District Court called it “restitution,” *id.*, at 93, and the Court of Appeals called it “[r]estitution of [p]rofits,” *SEC v. Texas Gulf Sulphur Co.*, 446 F. 2d 1301, 1307 (CA2 1971) (emphasis deleted). Courts soon substituted the label “disgorgement.” *SEC v. Manor Nursing Centers, Inc.*, 458 F. 2d 1082, 1105 (CA2 1972); *SEC v. Shapiro*, 349 F. Supp. 46, 55 (SDNY 1972).

The late date of these cases is sufficient reason to reject the argument that disgorgement is a traditional equitable remedy. But it is also telling that, when the SEC began seeking this relief, it did so without any statutory authority. Prior to 2005, the SEC lacked the power even to seek “equitable relief” in cases like this one. See §305(b), 116 Stat. 779 (amending the Securities Exchange Act). The District Court in *Texas Gulf Sulphur* purported to “imply [a] new remed[y],” based on its “inherent equity power” and a belief that “the congressional purpose is effectuated by so doing.” 312 F. Supp., at 91. But the sources it cited are dubious. The court relied on *J. I. Case Co. v. Borak*, 377 U. S. 426 (1964), a case about implied causes of action that we have since abrogated. See *Alexander v. Sandoval*, 532 U. S. 275, 287 (2001). It also relied on a securities law treatise that advocated for what it called “restitution” but admitted that district courts had no express authority to grant the remedy and that the SEC had never sought this remedy in the past. 3 L. Loss, Securities Regulation 1827–1828 (1961). It is functionally this same unauthorized remedy that the SEC

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and courts now call “disgorgement.” The details have varied over time, but the lineage is clear: Disgorgement is “a relic of the heady days” of courts inserting judicially created relief into statutes. *Correctional Services Corp. v. Malesko*, 534 U.S. 61, 75 (2001) (Scalia, J., concurring).

Disgorgement as a remedy in its own right is also absent from legal publications until the 20th century. Leading legal dictionaries did not define the term until the turn of the 20th century. See, e.g., Merriam-Webster’s Dictionary of Law 143 (1996); Black’s Law Dictionary 480 (7th ed. 1999). Nor was disgorgement included in the first Restatement of Restitution, adopted in 1936. The remedy does not appear until the Third Restatement, adopted in 2010, which states that “[r]estitution remedies” that seek “to eliminate profit from wrongdoing . . . are often called ‘disgorgement’ or ‘accounting.’” 2 Restatement (Third) of Restitution and Unjust Enrichment §51(4), p. 203. But “Restatement” is an inapt title for this edition of the treatise. Like many of the modern Restatements, its “authors have abandoned the mission of describing the law, and have chosen instead to set forth their aspirations for what the law ought to be.” *Kansas v. Nebraska*, 574 U.S. 445, 475 (2015) (Scalia, J., concurring in part and dissenting in part). The inclusion of “disgorgement” in the Third Restatement, which the majority cites in support of its holding, *ante*, at 79, represents a “‘novel extension’” of equity. *Kansas, supra*, at 483 (THOMAS, J., concurring in part and dissenting in part) (quoting Roberts, Restitutionary Disgorgement for Opportunistic Breach of Contract and Mitigation of Damages, 42 Loyola (LA) L. Rev. 131, 134 (2008)).

I acknowledge that this Court has referred to disgorgement as an equitable remedy in some of its prior decisions. See, e.g., *Feltner v. Columbia Pictures Television, Inc.*, 523 U.S. 340, 352 (1998). But these opinions merely referred to the term in passing without considering the question in

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depth. The history is clear: Disgorgement is not a form of relief that was available in the English Court of Chancery at the time of the founding.

C

The majority's treatment of disgorgement as an equitable remedy threatens great mischief. The term disgorgement itself invites abuse because it is a word with no fixed meaning. The majority sees "parallels" between accounting and disgorgement, *ante*, at 76, n. 1, but parallels are by definition not the same. Even if they were, the traditional remedy of an accounting—which compels a party to repay profits that belong to a plaintiff—has important conceptual limitations that disgorgement does not. An accounting connotes the relationship between a plaintiff and a defendant. In the words of one scholar, "it is an accounting by A to B." Bray, *Fiduciary Remedies*, at 454. But disgorgement connotes no relationship and so is not naturally limited to net profits and compensation of victims. It simply "is A disgorging." *Ibid.* Further, the traditional remedy of a constructive trust² or an equitable lien requires that the "money or property identified as belonging in good conscience to the plaintiff . . . clearly be traced to particular funds or property in the defendant's possession." *Great-West Life & Annuity Ins. Co. v. Knudson*, 534 U.S. 204, 213 (2002). Disgorgement reaches further because it has no tracing requirement. By using a word with no history in equity jurisprudence, the SEC and courts have made it possible to circumvent the careful limitations imposed on other equitable remedies.

One need look no further than the SEC's use of disgorgement to see the pitfalls of the majority's acquiescence in its continued use as a remedy. The order in *Texas Gulf Sulphur* did not depart too far from equitable principles. The

² A constructive trust compels a defendant "holding title to property . . . to convey it to another on the ground that he would be unjustly enriched if he were permitted to retain it." Restatement of Restitution § 160, at 640–641.

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award was limited to the defendants' net profits and the funds were held in escrow and were at least partly available to compensate victims, 446 F. 2d, at 1307. It did not take long, however, for a district court to order a defendant to turn over both his profits and the investment "income earned on the proceeds." *Manor Nursing Centers*, 458 F. 2d, at 1105. And in the case before us today, just a half century later, disgorgement has expanded even further. The award is not limited to net profits or even money possessed by an individual defendant when it is imposed jointly and severally. See *ante*, at 78. And not only is it not guaranteed to be used to compensate victims, but the imposition of over \$26 million in disgorgement and approximately \$8 million in civil monetary penalties in this case seems to ensure that victims will be unable to recover anything in their own actions. As long as courts continue to award "disgorgement," both courts and the SEC will continue to have license to expand their own power.

The majority's decision to tame, rather than reject, disgorgement will also cause confusion in administrative practice. As the majority explains, the SEC is expressly authorized to impose "'disgorgement'" in its in-house tribunals. *Ante*, at 86 (quoting 15 U.S.C. § 77h-1(e)). It is unclear whether the majority's new restrictions on disgorgement will apply to these proceedings as well. If they do not, the result will be that disgorgement has one meaning when the SEC goes to district court and another when it proceeds in-house.

More fundamentally, by failing to recognize that the problem is disgorgement itself, the majority undermines our entire system of equity. The majority believes that insistence on the traditional rules of equity is unnecessarily formalistic, *ante*, at 76, n. 1, but the Founders accepted federal equitable powers only because those powers depended on traditional forms. The Constitution was ratified on the understanding that equity was "a precise legal system" with "specific equi-

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table remed[ies].” *Missouri v. Jenkins*, 515 U.S. 70, 127 (1995) (THOMAS, J., concurring). “Although courts of equity exercised remedial ‘discretion,’ that discretion allowed them to deny or tailor a remedy despite a demonstrated violation of a right, not to expand a remedy beyond its traditional scope.” *Trump*, 585 U.S., at 716 (THOMAS, J., concurring). The majority, while imposing some limits, ultimately permits courts to continue expanding equitable remedies. I would simply hold that the phrase “equitable relief ” in § 78u(d)(5) does not authorize disgorgement.

II

After holding that disgorgement is equitable relief, the majority remands for the lower courts to reconsider the disgorgement order in this case. If the majority is going to accept “disgorgement” as an available remedy, it should at least limit the order to be consistent with the traditional rules of equity. First, the order should be limited to each petitioner’s profits. Second, the order should not be imposed jointly and severally. Third, the money paid by petitioners should be used to compensate petitioners’ victims.

A

First, the disgorgement order should be limited to “the profits actually made” by each petitioner. *Mowry v. Whitney*, 14 Wall. 620, 649 (1872); see also *ante*, at 83–84, 91–92. Defendants in equity traditionally may deduct “allowances . . . for the cost and expense of the business” from the amount of the award. *Root v. Railway Co.*, 105 U.S. 189, 215 (1882); see also *Callaghan v. Myers*, 128 U.S. 617, 665 (1888); *Elizabeth v. Pavement Co.*, 97 U.S. 126, 139 (1878); *Rubber Co. v. Goodyear*, 9 Wall. 788, 804 (1870). The rationale behind this rule is that “[i]t is not the function of courts of equity to administer punishment.” *Bangor Punta Operations, Inc. v. Bangor & Aroostook R. Co.*, 417 U.S. 703, 717–718, n. 14 (1974) (internal quotation marks omitted); see also 2 J. Story,

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Commentaries on Equity Jurisprudence § 1494, p. 819 (13th ed. 1886). Here, however, the District Court reasoned that “it would be ‘unjust to permit the defendants to offset against the investor dollars they received the expenses of running the very business they created to defraud those investors into giving the defendants the money in the first place.’” 754 Fed. Appx. 505, 509 (CA9 2018) (quoting *SEC v. J. T. Wallenbrock & Assocs.*, 440 F. 3d 1109, 1114 (CA9 2006)). On remand, the lower courts should limit the award to each petitioner’s profits.

B

Second, and relatedly, the disgorgement order should not be imposed jointly and severally. The majority analogizes disgorgement to accounting, *ante*, at 79, but this Court has rejected joint and several liability in actions for an accounting. *Elizabeth*, *supra*, at 139–140; *Keystone Mfg. Co. v. Adams*, 151 U.S. 139, 148 (1894); *Belknap v. Schild*, 161 U.S. 10, 25–26 (1896). The majority instructs the lower courts to determine whether petitioners were “partners in wrongdoing,” apparently based on a case about the liability of partners. *Ante*, at 82–83, 91 (citing *Ambler v. Whipple*, 20 Wall. 546 (1874)). But the liability in that case was premised on the law of partnership, and nothing indicates that petitioners here were legal partners. The joint and several order in this case is thus at odds with traditional equitable rules.³

³For its part, respondent cites the joint and several liability in *Jackson v. Smith*, 254 U.S. 586, 589 (1921), but the remedy in that case was a constructive trust, see *Smith v. Jackson*, 48 App. D. C. 565, 576 (1919). As explained above, there is no tracing requirement in the District Court’s order as would be required in a case of constructive trust. *Supra*, at 98. The Court also allowed joint and several liability in *Belford v. Scribner*, 144 U.S. 488 (1892), a copyright case. But it based its holding on the fact that, under the relevant copyright statute, “both the printer and the publisher are equally liable to the owner of the copyright for an infringement.” *Id.*, at 507; see also *Washingtonian Publishing Co. v. Pearson*, 140 F. 2d 465, 467 (CA9 1944).

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C

Finally, the award should be used to compensate victims, not to enrich the Government. Plaintiffs in equity may claim “that which, *ex aequo et bono* [according to what is equitable and good], is theirs, and nothing beyond this.” *Livingston v. Woodworth*, 15 How. 546, 560 (1854). The money ordered to be paid as disgorgement in no sense belongs to the Government, and the majority cites no authority allowing a Government agency to keep equitable relief for a wrong done to a third party. Requiring the SEC to only “generally” compensate victims, *ante*, at 88, is inconsistent with traditional equitable principles.

Worse still from a practical standpoint, the majority provides almost no guidance to the lower courts about how to resolve this question on remand. Even assuming that disgorgement is “equitable relief” for purposes of § 78u(d)(5) and that the Government may sometimes keep the money, the Court should at least do more to identify the circumstances in which the Government may keep the money. Instead, the Court asks lower courts to improvise a solution. If past is prologue, this uncertainty is sure to create opportunities for the SEC to continue exercising unlawful power.

* * *

I would reverse for the straightforward reason that disgorgement is not “equitable relief” within the meaning of § 78u(d)(5). Because the majority acquiesces in the continued use of disgorgement under that statute, I respectfully dissent.

Syllabus

DEPARTMENT OF HOMELAND SECURITY ET AL. *v.*
THURAISSIGIAMCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 19–161. Argued March 2, 2020—Decided June 25, 2020

The Illegal Immigration Reform and Immigrant Responsibility Act (IIRIRA) provides for the expedited removal of certain “applicants” seeking admission into the United States, whether at a designated port of entry or elsewhere. 8 U. S. C. § 1225(a)(1). An applicant may avoid expedited removal by demonstrating to an asylum officer a “credible fear of persecution,” defined as “a significant possibility . . . that the alien could establish eligibility for asylum.” § 1225(b)(1)(B)(v). An applicant who makes this showing is entitled to “full consideration” of an asylum claim in a standard removal hearing. 8 CFR § 208.30(f). An asylum officer’s rejection of a credible-fear claim is reviewed by a supervisor and may then be appealed to an immigration judge. §§ 208.30(e)(8), 1003.42(c), (d)(1). But IIRIRA limits the review that a federal court may conduct on a petition for a writ of habeas corpus. 8 U. S. C. § 1252(e)(2). In particular, courts may not review “the determination” that an applicant lacks a credible fear of persecution. § 1252(a)(2)(A)(iii).

Respondent Vijayakumar Thuraissigiam is a Sri Lankan national who was stopped just 25 yards after crossing the southern border without inspection or an entry document. He was detained for expedited removal. An asylum officer rejected his credible-fear claim, a supervising officer agreed, and an Immigration Judge affirmed. Respondent then filed a federal habeas petition, asserting for the first time a fear of persecution based on his Tamil ethnicity and political views and requesting a new opportunity to apply for asylum. The District Court dismissed the petition, but the Ninth Circuit reversed, holding that, as applied here, § 1252(e)(2) violates the Suspension Clause and the Due Process Clause.

Held:

1. As applied here, § 1252(e)(2) does not violate the Suspension Clause. Pp. 116–138.

(a) The Suspension Clause provides that “[t]he Privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.” Art. I, § 9, cl. 2. This Court has held that, at a minimum, the Clause “protects the writ as it existed in 1789,” when the Constitution was adopted. *INS v. St. Cyr*, 533 U. S. 289, 301. Habeas has traditionally provided a means

to seek release from unlawful detention. Respondent does not seek release from custody, but an additional opportunity to obtain asylum. His claims therefore fall outside the scope of the writ as it existed when the Constitution was adopted. Pp. 116–120.

(b) Respondent contends that three bodies of case law support his argument that the Suspension Clause guarantees a broader habeas right, but none do. Pp. 120–138.

(1) Respondent first points to British and American cases decided before or around the Constitution’s adoption. All those cases show is that habeas was used to seek release from detention in a variety of circumstances. Respondent argues that some cases show aliens using habeas to remain in a country. But the relief ordered in those cases was simply release; an alien petitioner’s ability to remain in the country was due to immigration law, or lack thereof. The relief that a habeas court may order and the collateral consequences of that relief are two entirely different things. Pp. 120–127.

(2) Although respondent claims to rely on the writ as it existed in 1789, his argument focuses on this Court’s decisions during the “finality era,” which takes its name from a feature of the Immigration Act of 1891 making certain immigration decisions “final.” In *Nishimura Ekiu v. United States*, 142 U. S. 651, the Court interpreted the Act to preclude judicial review only of questions of fact. Federal courts otherwise retained authority under the Habeas Corpus Act of 1867 to determine whether an alien was detained in violation of federal law. Thus, when aliens sought habeas relief during the finality era, the Court exercised habeas jurisdiction that was conferred by the habeas statute, not because it was required by the Suspension Clause—which the Court did not mention. Pp. 128–136.

(3) The Court’s more recent decisions in *Boumediene v. Bush*, 553 U. S. 723, and *St. Cyr*, 533 U. S. 289, also do not support respondent’s argument. *Boumediene* was not about immigration at all, and *St. Cyr* reaffirmed that the common-law habeas writ provided a vehicle to challenge detention and could be invoked by aliens already in the country who were held in custody pending deportation. It did not approve respondent’s very different attempted use of the writ. Pp. 136–138.

2. As applied here, § 1252(e)(2) does not violate the Due Process Clause. More than a century of precedent establishes that, for aliens seeking initial entry, “the decisions of executive or administrative officers, acting within powers expressly conferred by Congress, are due process of law.” *Nishimura Ekiu*, 142 U. S., at 660. Respondent argues that this rule does not apply to him because he succeeded in making it 25 yards into U. S. territory. But the rule would be meaningless if it became inoperative as soon as an arriving alien set foot on U. S.

Syllabus

soil. An alien who is detained shortly after unlawful entry cannot be said to have “effected an entry.” *Zadvydas v. Davis*, 533 U. S. 678, 693. An alien in respondent’s position, therefore, has only those rights regarding admission that Congress has provided by statute. In respondent’s case, Congress provided the right to a “determin[ation]” whether he had “a significant possibility” of “establish[ing] eligibility for asylum,” and he was given that right. §§ 1225(b)(1)(B)(ii), (v). Pp. 138–141.

917 F. 3d 1097, reversed and remanded.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concurring opinion, *post*, p. 141. BREYER, J., filed an opinion concurring in the judgment, in which GINSBURG, J., joined, *post*, p. 150. SOTOMAYOR, J., filed a dissenting opinion, in which KAGAN, J., joined, *post*, p. 158.

Deputy Solicitor General Kneedler argued the cause for petitioners. With him on the briefs were *Solicitor General Francisco, Assistant Attorney General Hunt, Morgan L. Ratner, Erez Rewveni, and Joshua S. Press*.

Lee Gelernt argued the cause for respondent. With him on the brief were *Omar C. Jadwat, Jonathan Hafetz, Celso J. Perez, David D. Cole, Cody Wofsy, Stephen B. Kang, Morgan Russell, Cecillia D. Wang, and Lucas Guttentag*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Arizona et al. by *Mark Brnovich*, Attorney General of Arizona, *Oramel H. Skinner*, Solicitor General, *Rusty D. Crandell*, Deputy Solicitor General, *Kate B. Sawyer*, Assistant Solicitor General, *Katherine H. Jessen*, Assistant Attorney General, *Joseph A. Kanefield*, and *Brunn W. Roysden III*, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Leslie Rutledge* of Arkansas, *Curtis T. Hill, Jr.*, of Indiana, *Jeff Landry* of Louisiana, *Douglas Peterson* of Nebraska, *Alan Wilson* of South Carolina, *Jason Ravnsborg* of South Dakota, and *Ken Paxton* of Texas; for the Criminal Justice Legal Foundation by *Kent S. Scheidegger* and *Kymberlee C. Stapleton*; and for the Immigration Law Reform Institute by *Christopher J. Hajec* and *Lawrence J. Joseph*.

Briefs of *amici curiae* urging affirmance were filed for the State of Illinois et al. by *Kwame Raoul*, Attorney General of Illinois, *Jane Elinor Notz*, Solicitor General, and *Sarah A. Hunger*, Deputy Solicitor General, and by the Attorneys General for their respective jurisdictions as follows:

JUSTICE ALITO delivered the opinion of the Court.

Every year, hundreds of thousands of aliens are apprehended at or near the border attempting to enter this country illegally. Many ask for asylum, claiming that they would be persecuted if returned to their home countries. Some of these claims are valid, and by granting asylum, the United States lives up to its ideals and its treaty obligations. Most asylum claims, however, ultimately fail, and some are fraudulent. In 1996, when Congress enacted the Illegal Immigration Reform and Immigrant Responsibility Act (IIRIRA), 110 Stat. 3009–546, it crafted a system for weeding out patently meritless claims and expeditiously removing the aliens making such claims from the country. It was Congress’s judgment that detaining all asylum seekers until the full-blown removal process is completed would place an unacceptable burden on our immigration system and that releasing them would present an undue risk that they would fail to appear for removal proceedings.

This case concerns the constitutionality of the system Congress devised. Among other things, IIRIRA placed restrictions on the ability of asylum seekers to obtain review under the federal habeas statute, but the United States Court of

Xavier Becerra of California, William Tong of Connecticut, Kathleen Jennings of Delaware, Karl A. Racine of the District of Columbia, Clare E. Connors of Hawaii, Aaron M. Frey of Maine, Brian E. Frosh of Maryland, Maura Healey of Massachusetts, Dana Nessel of Michigan, Keith Ellison of Minnesota, Gurbir S. Grewal of New Jersey, Hector Balderas of New Mexico, Letitia James of New York, Ellen F. Rosenblum of Oregon, Josh Shapiro of Pennsylvania, Peter F. Neronha of Rhode Island, Thomas J. Donovan, Jr., of Vermont, Mark R. Herring of Virginia, and Robert W. Ferguson of Washington; for the American Bar Association by Pratik A. Shah, James E. Tysse, and Judy Perry Martinez; for Asylum Law Professors by Roy T. Englert, Jr., and Wendy Liu; for Immigration and Human Rights Organizations by Matthew E. Price; for Immigration Scholars by Joshua S. Lipshutz and Adam Cox and Cristina Rodríguez, both pro se; for International Lawyers by Curtis Doebbler; for Legal Historians by Michael J. Wishnie, Anton Metlitsky, and Jennifer B. Sokoler; for Scholars of the Law of Habeas Corpus by Noah A. Levine; and for Sri Lankan Politics by Leo L. Lam, Anjali Srinivasan, and Candice Mai Khanh Nguyen.

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Appeals for the Ninth Circuit held that these restrictions are unconstitutional. According to the Ninth Circuit, they unconstitutionally suspend the writ of habeas corpus and violate asylum seekers' right to due process. We now review that decision and reverse.

Respondent's Suspension Clause argument fails because it would extend the writ of habeas corpus far beyond its scope "when the Constitution was drafted and ratified." *Boumediene v. Bush*, 553 U. S. 723, 746 (2008). Indeed, respondent's use of the writ would have been unrecognizable at that time. Habeas has traditionally been a means to secure *release* from unlawful detention, but respondent invokes the writ to achieve an entirely different end, namely, to obtain additional administrative review of his asylum claim and ultimately to obtain authorization to stay in this country.

Respondent's due process argument fares no better. While aliens who have established connections in this country have due process rights in deportation proceedings, the Court long ago held that Congress is entitled to set the conditions for an alien's lawful entry into this country and that, as a result, an alien at the threshold of initial entry cannot claim any greater rights under the Due Process Clause. See *Nishimura Ekiu v. United States*, 142 U. S. 651, 660 (1892). Respondent attempted to enter the country illegally and was apprehended just 25 yards from the border. He therefore has no entitlement to procedural rights other than those afforded by statute.

In short, under our precedents, neither the Suspension Clause nor the Due Process Clause of the Fifth Amendment requires any further review of respondent's claims, and IIRIRA's limitations on habeas review are constitutional as applied.

I

A

We begin by briefly outlining the provisions of immigration law that are pertinent to this case. Under those provi-

sions, several classes of aliens are “inadmissible” and therefore “removable.” 8 U.S.C. §§ 1182, 1229a(e)(2)(A). These include aliens who lack a valid entry document “at the time of application for admission.” § 1182(a)(7)(A)(i)(I). An alien who arrives at a “port of entry,” *i. e.*, a place where an alien may lawfully enter, must apply for admission. An alien like respondent who is caught trying to enter at some other spot is treated the same way. §§ 1225(a)(1), (3).

If an alien is inadmissible, the alien may be removed. The usual removal process involves an evidentiary hearing before an immigration judge, and at that hearing an alien may attempt to show that he or she should not be removed. Among other things, an alien may apply for asylum on the ground that he or she would be persecuted if returned to his or her home country. § 1229a(b)(4); 8 CFR § 1240.11(c) (2020). If that claim is rejected and the alien is ordered removed, the alien can appeal the removal order to the Board of Immigration Appeals and, if that appeal is unsuccessful, the alien is generally entitled to review in a federal court of appeals. 8 U.S.C. §§ 1229a(c)(5), 1252(a). As of the first quarter of this fiscal year, there were 1,066,563 pending removal proceedings. See Executive Office for Immigration Review (EOIR), Adjudication Statistics: Pending Cases (Jan. 2020). The average civil appeal takes approximately one year.¹ During the time when removal is being litigated, the alien will either be detained, at considerable expense, or allowed to reside in this country, with the attendant risk that he or she may not later be found. § 1226(a).

Congress addressed these problems by providing more expeditious procedures for certain “applicants for admission.”

¹ See Administrative Office of the U. S. Courts, Federal Judicial Caseload Statistics, U. S. Courts of Appeals—Median Time Intervals in Months for Civil and Criminal Appeals Terminated on the Merits (2019) (Table B–4A) (time calculated for non-prisoner appeals from the filing of a notice of appeal to the last opinion or final order).

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For these purposes, “[a]n alien present in the United States who has not been admitted or who arrives in the United States (whether or not at a designated port of arrival . . .)” is deemed “an applicant for admission.” § 1225(a)(1).² An applicant is subject to expedited removal if, as relevant here, the applicant (1) is inadmissible because he or she lacks a valid entry document; (2) has not “been physically present in the United States continuously for the 2-year period immediately prior to the date of the determination of inadmissibility”; and (3) is among those whom the Secretary of Homeland Security has designated for expedited removal. §§ 1225(b)(1)(A)(i), (iii)(I)–(II).³ Once “an immigration officer determines” that a designated applicant “is inadmissible,” “the officer [must] order the alien removed from the United States without further hearing or review.” § 1225(b)(1)(A)(i).

Applicants can avoid expedited removal by claiming asylum. If an applicant “indicates either an intention to apply for asylum” or “a fear of persecution,” the immigration officer “shall refer the alien for an interview by an asylum officer.” §§ 1225(b)(1)(A)(i)–(ii). The point of this screening interview is to determine whether the applicant has a “credible fear of persecution.” § 1225(b)(1)(B)(v). The applicant need not show that he or she *is in fact eligible* for asylum—a “credible fear” equates to only a “significant possibility” that the alien would be eligible. *Ibid.* Thus, while eligibility ultimately requires a “well-founded fear of persecution on account of,” among other things, “race” or “political opinion,”

²When respondent entered the country, aliens were treated as applicants for admission if they were “encountered within 14 days of entry without inspection and within 100 air miles of any U. S. international land border.” 69 Fed. Reg. 48879 (2004).

³This authority once belonged to the Attorney General, who is still named in the statute. See 6 U. S. C. § 251(2) (transferring authority over “[t]he detention and removal program” to the Department).

§§ 1101(a)(42)(A), 1158(b)(1)(A), all that an alien must show to avoid expedited removal is a “credible fear.”⁴

If the asylum officer finds an applicant’s asserted fear to be credible,⁵ the applicant will receive “full consideration” of his asylum claim in a standard removal hearing. 8 CFR § 208.30(f); see 8 U. S. C. § 1225(b)(1)(B)(ii). If the asylum officer finds that the applicant does not have a credible fear, a supervisor will review the asylum officer’s determination. 8 CFR § 208.30(e)(8). If the supervisor agrees with it, the applicant may appeal to an immigration judge, who can take further evidence and “shall make a de novo determination.” §§ 1003.42(c), (d)(1); see 8 U. S. C. § 1225(b)(1)(B)(iii)(III).

An alien subject to expedited removal thus has an opportunity at three levels to obtain an asylum hearing, and the applicant will obtain one unless the asylum officer, a supervisor, and an immigration judge all find that the applicant has not asserted a credible fear.

⁴ A grant of asylum enables an alien to enter the country, but even if an applicant qualifies, an actual grant of asylum is discretionary. § 1158(b)(1)(A).

⁵ The asylum officer also considers an alien’s potential eligibility for withholding of removal under § 1231(b)(3) or relief under the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT). 8 CFR §§ 208.30(e)(2)–(3). Respondent’s habeas petition alleges that “he can show a significan[t] possibility that he could establish eligibility for asylum, withholding of removal, and CAT claims.” App. 31–32. But he says in his petition that he left Sri Lanka “to seek asylum in the United States.” *Id.*, at 15. He discusses the criteria only for asylum. *Id.*, at 21; see also Brief for Respondent 4. And he now alleges that he was improperly “denied asylum.” *Id.*, at 5. Moreover, the gravamen of his petition is that he faces persecution in Sri Lanka “because of” his Tamil ethnicity and political opinions. App. 13. To obtain withholding or CAT relief on that basis, he would need to show “a greater likelihood of persecution or torture at home than is necessary for asylum.” *Moncrieffe v. Holder*, 569 U.S. 184, 187–188, n. 1 (2013). And he would not avoid removal, only removal to Sri Lanka. 8 U. S. C. § 1231(b)(3)(A); 8 CFR § 208.16(f). We therefore read his petition as it is plainly intended: to seek another opportunity to apply for asylum.